

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act empowering students and schools to thrive.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/27/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>2/4/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/5/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>3/5/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>3/5/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/5/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/7/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>4/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>4/7/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/7/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/12/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/28/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/15/2026</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>4/15/2026</i>

HOUSE No.

By Representative Montañó of Boston, a petition (subject to Joint Rule 12) of Samantha Montañó and others relative to underperforming schools. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act empowering students and schools to thrive.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Said chapter 69 is hereby amended by striking out sections 1J and 1K, as
2 so appearing, and inserting in place thereof the following section:

3 Section 1J. (a) The commissioner of elementary and secondary education shall identify
4 schools for comprehensive support and improvement using a formula developed by the
5 department that complies with the criteria and processes in federal education law; provided that,
6 under this formula, student growth shall be given at least as much weight as student
7 achievement, and provided further that no more than five per cent of all schools statewide shall
8 be designated as comprehensive support and improvement schools at one time.

9 (b) Within 30 days of a school being designated as in need of comprehensive support and
10 improvement, the superintendent of the district shall convene a local stakeholder group of not
11 more than 11 individuals to develop a support and improvement plan for the school. The district
12 should strive to have the group membership represent the racial-ethnic and language diversity of

the school. The group shall include: (1) the superintendent, or a designee; (2) a representative from the school committee selected by a majority of school committee members; (3) the president of the local teachers union, or a designee; (4) an administrator from the school, who may be the principal, chosen by the superintendent; (5) two educators (who could be teachers or education support professionals) from the school, chosen by the school's educators; (6) a parent from the school, chosen by the local parent organization, provided that if the school or district does not have a parent organization or if the organization does not select a parent, the superintendent shall select a volunteer parent of a student from the school; (7) for high schools, a student selected by the students at the school, and for other schools, an individual selected by the superintendent who brings the appropriate grade-level perspective to the group (e.g., a representative from the early childhood or pre-kindergarten sector for an elementary school); (8) an educator or representative from the social services sector with expertise in students' mental health and social-emotional development, selected jointly by the group; (9) a member representing a community organization, selected jointly by the group; and 10) an individual who has specialized expertise in one or more of the evidence-based programs listed in subsection (c), selected jointly by the group.

(c) The local stakeholder group shall develop a support and improvement plan for the school, consistent with federal and state law, a final draft of which shall be submitted to the school committee within 45 days of its first meeting. Consistent with guidelines developed by the department, the group shall: (i) research, identify and analyze the root causes of the school's challenges; (ii) examine the adequacy of resources and equity in the distribution of those resources, including an assessment of the physical condition of the school building; and (iii) identify and catalog the school's strengths and assets. The final draft plan submitted to the school

committee shall include a guiding vision of learning for the school; goals and objectives; and a description of the evidence-based programs, supports and interventions that the district shall employ to address the root causes of the school’s challenges and capitalize on assets consistent with the guiding vision. Such evidence-based programs, supports and interventions may include: (1) reduced class sizes and student caseloads; (2) small-group instruction and/or one-on-one tutoring; (3) increased opportunity for common planning time for teachers; (4) implementation of a “Community Schools” or “Hub School” model or other strategies for expanding social and wraparound services to support students’ social-emotional and physical health; (5) additional hiring, increased compensation, and/or strategic deployment of school personnel (e.g, coteaching to facilitate inclusion) to support student learning and to retain highly qualified staff; (6) increased or improved professional development, which may include mentoring and induction programs for new teachers, as well as training in trauma-informed and anti-racist best practices that are designed to limit school exclusion and maximize student engagement; (7) the use of effective curriculum materials that are culturally responsive and aligned with the statewide curriculum frameworks; (8) expanded early education and pre-kindergarten programming within the district in consultation or in partnership with community-based organizations; (9) diversifying the educator and administrator workforce; (10) developing additional pathways to strengthen college and career readiness; and (11) any other program determined to be evidence based by the group that addresses root causes of challenges identified in its analysis.^[SEP]

(d) The local stakeholder group shall make every effort to reach consensus on the final draft plan and shall submit it to the school committee for review and approval. If consensus cannot be reached, a majority of the group shall submit its final draft plan to the school committee for review and approval. Dissenting members of the group may submit an alternative

final draft plan to the school committee for consideration, clearly indicating the areas of dissent. Upon receipt of the final draft plan or plans, the school committee shall hold at least one public hearing, giving at least 30 days' public notice. The school committee may make modifications to the final draft plan as necessary, consistent with federal and state law, and shall vote on the final draft plan within 30 days of the hearing. The final plan shall be shared publicly and filed with the commissioner. After confirming that the requirements of subsections (b) through (d) were complied with, the commissioner shall approve the final plan.

(e) The department shall prioritize comprehensive support and improvement schools for additional funding above and beyond chapter 70 allocations to support the evidence-based programs identified in the final approved plan. Before the local stakeholder group commences its work, the department shall provide the group with an estimate of future Chapter 70 aid for the district and available funds in excess of Chapter 70 aid for the school that shall support the final approved plan.

(f) The support and improvement plan shall be in effect for not more than four years, and shall be reviewed annually by the superintendent pursuant to guidelines developed by the department. Such progress reviews shall be shared publicly and filed with the commissioner, who may comment on the reviews.

(g) The department shall establish exit criteria for schools in need of comprehensive support and improvement using a formula that complies with federal education law. Upon expiration of the final approved plan, the commissioner shall review the school's progress and determine, based solely on the exit criteria established by the department, whether: (1) the school is exited from comprehensive support and improvement status; or (2) the status and plan shall

continue for up to four additional years. If the commissioner determines that the status and plan shall continue, the local stakeholder group shall be reconvened to revise the final approved plan, consistent with subsections (b) through (d) and subject to approval by the commissioner. If not approved, the commissioner shall return the plan to the group with a directive to add specific evidence-based programs, supports and interventions listed in (1) through (10) of subsection (c). Within 30 days, the group shall submit the plan to the school committee for review and approval. Within 30 days of receipt of the plan from the group, the school committee shall submit the final plan to the commissioner.

(h) Upon the expiration of any continued or revised plan, the process in subsection (g) shall be replicated.

(i) The school committee of any district with schools which have been deemed underperforming or chronically unperforming shall develop a transition plan for transition to the current section 1J of this act which shall be implemented with transition to the current section within 1 year of the effective date of this act. The transition plan shall be implemented and any school receivership shall end within 1 year of the effective date of this Act. The department shall provide the school committee with the necessary funding and technical assistance to develop and implement the transition plan.

(j) The board shall adopt regulations to implement this section, including provisions that allow features of a support and improvement plan to continue for up to two years after a school is exited from comprehensive support and improvement status. The department shall also make every effort to continue additional funding during any transitional period.

SECTION 2. The school committee of any district in receivership shall develop a transition plan for ending the receivership and hiring a superintendent. The transition plan shall be implemented and the receivership shall end within 1 year of the effective date of this Act. The department shall provide the school committee with the necessary funding and technical assistance to develop and implement the transition plan.

SECTION 3. (a) There shall be a special commission to study and make recommendations for a more authentic and accurate system for assessing students, schools and school districts. The commission shall examine: (i) the requirements of the Every Student Succeeds Act of 2015, codified at 20 U.S.C. § 6301 et. seq., and potential waivers; (ii) alternative assessment and accountability systems in place or being considered nationwide; and research data on the knowledge and skills that parents, elementary and secondary educators, higher education educators, and business leaders want students to have upon high school graduation.

Regarding the assessment of students, the special commission shall consider assessments other than conventional methods, including, but not limited to: work samples, projects and portfolios, performance assessments and other authentic and direct gauges of student performance that encourage effective instruction, use strategies for avoiding racial and ethnic biases, and recognize the strengths of all students.

Regarding the assessment of schools and districts, the special commission shall consider the inclusion of a broader range of measures, beyond standardized test scores, that align with public values and are less tied to student demography. The commission shall also research best practices for facilitating stakeholder-driven improvement processes in schools identified under

federal law as needing comprehensive support, such as the creation of community schools. The commission shall recommend strategies for assessing students, schools and districts that comply with current federal law. The commission also may make recommendations for changes in or waivers from federal law that would facilitate the implementation of effective assessment strategies.

(b) The commission shall consist of: 1 member who shall be appointed by the president of the senate, who shall serve as co-chair; 1 member who shall be appointed by the speaker of the house of representatives, who shall serve as co-chair; 1 member who shall be appointed by the minority leader of the senate; 1 member who shall be appointed by the minority leader of the house of representatives; the secretary of education, or a designee; the commissioner of elementary and secondary education, or a designee; 1 member who shall be appointed by the Massachusetts Association of School Committees, Inc.; 1 member who shall be appointed by the Massachusetts Teachers Association; 1 member who shall be appointed by the American Federation of Teachers, Massachusetts; 1 member who shall be appointed by the Massachusetts Association of School Superintendents, Inc.; 1 member who shall be appointed by the Massachusetts Education Justice Alliance (MEJA); 1 member who shall be appointed by the NAACP; 1 member who shall be appointed by the Massachusetts Immigrant and Refugee Advocacy (MIRA) Coalition; 1 member who shall be appointed by Multicultural Education, Training, and Advocacy, Inc; 1 member who shall be appointed by the Massachusetts Consortium for Innovative Education Assessment; 1 member who shall be appointed by the Black Educators Alliance of Massachusetts; 1 member who shall be appointed by the Massachusetts Asian American Educators Association; 1 member who shall be appointed by the Gaston Institute for Latino Community Development and Public Policy of the University of

147 Massachusetts Boston; 1 member who shall be appointed by the Massachusetts Advocates for
148 Children; 1 member who shall be appointed by the Center for Law and Education; 1 member
149 who shall be appointed by the Center for Antiracist Research at Boston University; 1 of whom
150 shall be the student representative on the State Board of Education, or a designee; 1 of whom
151 shall be the parent representative on the State Board of Education, or a designee; 1 member who
152 shall be appointed by the Rural Policy Advisory Commission; 1 member who shall be appointed
153 by GLSEN Massachusetts; and 1 member who shall be a researcher from a public university
154 with expertise in the area of assessment, selected jointly by the members of the commission.
155 Members shall not receive compensation for their services but may receive reimbursement for
156 reasonable expenses incurred in carrying out their responsibilities as members of the
157 commission. The commissioner of elementary and secondary education shall furnish reasonable
158 staff and other support for the work of the commission.

159 (c) The commission shall hold not less than 5 public meetings across the regions of the
160 commonwealth and may hold additional hearings and other forums as necessary. The
161 commission shall file its report and recommendations with the clerks of the senate and the house
162 of representatives, the chairs of the joint committee on education and the rural policy advisory
163 commission not later than August 31, 2025.

164 SECTION 4. Section 89 of chapter 71 of the General Laws is hereby amended by striking
165 out Subsection (i) (3), as appearing in the XXXX Official Edition, and by further striking out
166 subsection (i) (2) and inserting in place thereof the following section:

167 (2) In any fiscal year, no public school district's total charter school tuition payment to
168 commonwealth charter schools shall exceed 9 per cent of the district's net school spending. The

169 commonwealth shall incur charter school tuition payments for siblings attending commonwealth
170 charter schools to the extent that their attendance would otherwise cause the school district's
171 charter school tuition payments to exceed 9 per cent of the school district's net school spending.